

SENATE BILL NO. 366

INTRODUCED BY M. REGIER

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING THE CENTRAL COMMITTEE COUNTY CONVENTION NOTIFICATION PROCESS; ALLOWING NOTIFICATION OF THE CALL OF THE COUNTY CONVENTION TO BE E-MAILED TO COMMITTEE REPRESENTATIVES; AND AMENDING SECTION 13-38-205, MCA."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 13-38-205, MCA, is amended to read:

"13-38-205. Organization and operation of county and city central committees. (1) The county central committee shall meet prior to the state convention of its political party and organize by electing a presiding officer and one or more vice presiding officers. The gender of the presiding officer and the vice presiding officer may not be the same. The county central committee shall elect a secretary and other officers as necessary. It is not necessary for the officers to be precinct committee representatives.

(2) The committee may select managing or executive committees and authorize subcommittees to exercise all powers conferred upon the county, city, state, and congressional central committees by the election laws of this state.

(3) The presiding officer of the county central committee shall call the county convention and not less than 4 days before the date of the county convention shall publish the call in a newspaper published at the county seat and mail or e-mail a copy of the call to each precinct committee representative. If party rules permit the use of a proxy, a proxy may not be recognized unless it is held by an elector of the precinct of the committee representative executing it.

(4) The county presiding officer of the party shall preside at the county convention. No person other than a duly elected or appointed committee representative or officer of the committee is entitled to participate in the proceedings of the committee.

(5) If a committee representative is absent, the convention may fill the vacancy by appointing some qualified elector of the party, resident in the precinct, to represent the precinct in the convention.

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